

Buddha Ram v. U.P. Power Corporation

High Court of Judicature at Allahabad · Division Bench · 11 August 2011 · Writ-C No. 45710 of 2011 · **Writ dismissed; petitioner relegated to Supply Code, 2005 remedies.**

HEADNOTE

A writ of mandamus to compel the licensee to decide a consumer's application against disconnection and alleged wrong bills cannot be entertained. The consumer must take the appropriate remedy under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Buddha Ram, a consumer, filed Writ-C No. 45710 of 2011 against U.P. Power Corporation and others. He sought a mandamus directing the respondents to decide his application dated 18 July 2011. The application alleged disconnection of electric supply on 3 April 2011 and asked for a decision on wrong bills issued to him. The Division Bench of Ashok Bhushan and Naheed Ara Moonis, JJ. heard counsel for both sides on 11 August 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

writ-maintainability-billing-disconnection

HOLDING

Where a consumer seeks a mandamus to decide an application alleging disconnection and wrong bills, the writ is not entertainable; the consumer must take the appropriate remedy under the Electricity Supply Code, 2005. ¶ 1

FLAG order cites the Supply Code generally, without a clause number

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ of mandamus to compel the licensee to decide a consumer's application against disconnection and alleged wrong bills cannot be entertained. The consumer must take the appropriate remedy under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 3 APRIL 2011 DISCONNECTION WAS ILLEGAL AND WHETHER THE BILLS WERE WRONG

The Court did not examine the disconnection or the bills on merits. ¶ 1